

Tentative Rulings

June 3, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, by CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Espinosa v. FCA US, LLC, et al*, Case No. CIVSB2436711
Defendant FCA's Motion to Compel Deposition of Plaintiff
6/3/26, 9:00 a.m., S-17

Tentative Rulings

The Court would find the motion **MOOT** so far as the parties have already scheduled the deposition. To the extent not already scheduled, the Court would **GRANT** and discuss a mutually agreeable date certain; alternatively, the Court may order the parties to meet and confer for a date to occur within thirty (30) days.

The Court would **GRANT** sanctions in the amount of \$960, payable within thirty (30) days.

Case Summary

This is a lemon law case. On or about November 2, 2020, Plaintiff purchased the subject vehicle. They assert that the vehicle included warranties. However, they assert that there were defects and nonconformities to the transmission that manifested within the warranty period. They assert that Defendant knew or should have known of the defects and should not have sold the vehicle. They further allege that Defendant concealed its knowledge of the defects. Notwithstanding, they also alleged they are entitled to replacement or restitution, and that, despite adequate opportunity, Defendant has failed to provide replacement or restitution. As such, they filed suit on December 11, 2024. After demurrer, Plaintiff filed the operative First Amended Complaint, asserting causes of action for: (1) violation of Section 1793.2(d) (*Song-Beverly Act* (Act)); (2) violation of Section 1793.2(b) (Act); (3) violation of Section 1793.2(a)(3) (Act); (4) breach of implied warranty of merchantability; (5) negligent repair; and (6) fraudulent concealment.

Analysis

Defendant scheduled Plaintiff's deposition four times and served notices of deposition each time. The last three dates were jointly-agreed to. However, Plaintiff cancelled the deposition several days before each scheduled date. After the last such cancellation, defense counsel sent a list of six proposed dates and demanded a response by the end of the day. Plaintiff's counsel quickly responded and indicated an intent to coordinate the proposed dates but did not otherwise respond as of March 23. (Borrero Decl., ¶¶12-13; Exhs. A-L.)

Plaintiff's counsel declares each of the scheduled dates ultimately became unavailable due to circumstances outside Plaintiff's control, including staffing transitions within counsel's office and inadvertent calendaring issues. Plaintiff's counsel asserts she actively sought to obtain Plaintiff's updated availability and provide it to defense counsel in advance of the hearing. Thus, she asserts, the delay was not in bad faith. Plaintiff acknowledges dates were not provided as promptly as they could have been. As of the filing of the opposition, Plaintiff is actively working to finalize and provide deposition availability with the expectation the deposition will proceed

without the need for Court intervention. However, Plaintiff does not oppose an order setting a firm date if the Court deems such appropriate. (Washington Decl., ¶¶3-10.)

14. *Wylie v. New Rez LLC, et al*, Case No. CIVSB2513110
Defendant's Demurrer to Second Amended Complaint
6/3/26, 9:00 a.m., Dept. S-17

The Court would **SUSTAIN** this unopposed demurrer to the Second Amended Complaint (SAC). Plaintiff will have thirty (30) days leave to amend. The Court will hear argument on whether leave to amend is appropriate.

In this case, the Plaintiff – who is proceeding *pro per* – filed this instant action originally on May 19, 2025, alleging non-compliance with California's foreclosure law. She then filed a First Amended Complaint (FAC) on July 16, 2025. It was subject to a sustained demurrer on November 14, 2024. She filed the operative SAC on December 15, 2025. Defendant filed this instant demurrer shortly thereafter. The Court agrees with Defendant's assessment that the SAC does not set forth sufficient factual allegations. The SAC is, on its face, uncertain as it fails to clearly set forth *any* causes of action.

21. *Orozco Cortez v. Landa Vasquez*, Case No. CIVSB2201776
Motion to Dismiss
6/3/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

The Court would, first, take judicial notice of the Plaintiff's Chapter 7 bankruptcy documents as presented, including those establishing discharge. (Exhs. 1-8.) Thus, Plaintiff sets forth uncontested evidence. Here the bankruptcy Discharge Order advised the Plaintiff he could not collect on discharged debts. (Exh. 7 ["Creditors cannot collect discharged debts."]; see also 11 USC § 524.)
